

		17 Cal.5th 207, 225-226 & fn. 11.) Here, Defendants do not state when or how they learned of this case and the judgment. They simply state the “only became aware of this case years later, after a judgment had already been entered.” Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE. The court clerk is directed to give notice of this ruling.
10.	Flight Phase I Owner, LLC v. Incipio, LLC 202301367887	CONTINUED TO JUNE 24, 2026, to be heard in Department C61 as stated in the June 5, 2026 minute order.
11.	Melzter vs. Cardiology Specialists of Orange County 2025-01530605	Before the court is the motion to amend the judgment to add post-award prejudgment interest filed by petitioners Dr. Paul B. Melzter and Paul Meltzer, M.D., Inc. (collectively, Petitioners). As more fully set forth below, the motion is DENIED because, although the court agrees with the authorities and arguments Petitioners make, the court finds it lacks jurisdiction to amend the judgment and award pre-judgment interest at this time because respondent Cardiology Specialists of Orange County (Respondent) have filed a notice of appeal that divests this court of jurisdiction and the award of prejudgment interest is not a collateral matter in the nature of costs or attorney fees. Petitioners request the court amend the judgment to add prejudgment interest from the date the underlying arbitration award was issued on November 5, 2025, through to the date judgment was entered on March 27, 2026. Petitioners do not seek prejudgment interest on any sums prior to the date the award was issued, which the arbitrator specifically refused to grant. The law is clear that a successful petitioner in arbitration is entitled to recover prejudgment interest from the date of the arbitration award until the date judgment is entered on that award. The statutory authority for this award of prejudgment interest is Civil Code section 3287, subdivision (a). (<i>Britz, Inc. v. Alfa-Laval Food & Dairy Co.</i> (1995) 34 Cal.App.4th 1085, 1106-1107 (<i>Britz</i>); <i>Pierotti v. Torian</i> (2000) 81 Cal.App.4th 17, 27 (<i>Pierotti</i>); <i>County of Solano v. Lionsgate Corp.</i> (2005) 126 Cal.App.4th 741, 753.) As the <i>Britz</i> court explained, “[A petition to confirm an arbitration award does not seek] an award of damages and attorney fees on the original contracts [or underlying

claims]. That underlying dispute was the subject of the arbitration, and had been concluded by the time of the superior court petition to confirm the award. The arbitration award itself resulted in a new and fixed liability (see Code Civ. Proc., § 1287.6). Regardless of the individual elements that comprised that liability, respondents were entitled to payment of the fixed sum upon issuance of the award. [¶] The arbitration award was the contractual equivalent of a judgment in respondents' favor. In the context of a judicial judgment, it is clear that interest after judgment accrues as to the entire award, including attorney fees. (See 8 Witkin, Cal. Procedure (3d ed. 1985) Enforcement of Judgments, § 40(d), p. 58.) The prejudgment interest awarded respondents served the same purpose here. Although the interest was pre-'judicial judgment,' it was post-'contractual judgment.' Any result that denied respondents this post award interest would punish them for using arbitration instead of the court system to resolve their dispute with appellants." (*Britz, supra*, 34 Cal.App.4th at p. 1107.)

Respondent argues the arbitrator's refusal to award prejudgment interest bars all interest including the post-award, prejudgment interest Petitioners seek here. This argument, however, fails to properly differentiate between pre-arbitration award interest and post-arbitration award, but prejudgment interest. Indeed, it appears the arbitrator only considered and denied prejudgment interest on the sums the arbitrator determined Petitioners were owed for the pre-award period. The award is silent as to post-award, prejudgment interest.

This same argument was considered and rejected by the court in *Pierotti*: "[I]n our view, the arbitrator never considered or ruled on the precise issue that Pierotti raises here: whether he is entitled to interest under Civil Code section 3287, subdivision (a) for the period between the award and the time the court entered judgment confirming the award. Pierotti made that request for the first time in his petition to confirm the award. We simply do not believe the issue was before the arbitrator, or that he decided the issue. [Footnote omitted.] Here, Pierotti is not asking for an award of interest 'upon the unliquidated contract claims [that were before the arbitrator] . . . but solely upon the arbitration award from the date of the award.' [Citation.]" (*Pierotti, supra*, 81 Cal.App.4th at pp. 27-28.) An award of the prejudgment interest sought here does not result in a modification or amendment of the arbitration award.

		Respondent further argues the requested interest is barred as Petitioners did not request such relief in their opening or closing arbitration briefs. "However, it is well established that, in a contested action, prejudgment interest may be awarded, if the plaintiff is entitled to it, even though the complaint contains no prayer for interest. [Citation.] 'The rationale of these cases is the simple proposition that in a contested action on a money claim which can be made certain by calculation, the matter of interest for the withholding of the money is "embraced within the issue" (Code Civ. Proc., § 580) and the appropriate interest may be allowed even though not prayed for' [Citation.] We can see no reason to distinguish between the award of interest on a complaint and on a petition to confirm an arbitration award." (<i>Britz, supra</i>, 34 Cal.App.4th at p. 1106.) The court also agrees with Petitioners' argument regarding the applicable interest rate. Specifically, Petitioners argue 10 percent per annum is correct under Civil Code section 3289, subdivision (b), but Respondent argues 7 percent per annum under Civil Code section 3287. Although there were separate issues before the arbitrator of breach of a written partnership contract and quantum meruit based upon Petitioners' post-disassociation independent contractor work, "[t]he arbitration award itself resulted in a new and fixed liability [citation]. Regardless of the individual elements that comprised that liability, respondents were entitled to payment of the fixed sum upon issuance of the award. [¶] The arbitration award was the contractual equivalent of a judgment in respondents' favor. In the context of a judicial judgment, it is clear that interest after judgment accrues as to the entire award. . . . [Citation.] The prejudgment interest awarded respondents served the same purpose here. Although the interest was pre-'judicial judgment,' it was post-'contractual judgment.'" (<i>Britz, supra</i>, 34 Cal.App.4th at p. 1107.) The court finds the 10 percent per annum rate under Civil Code section 3289, subdivision (b), applies. Applying that rate Petitioners receive an award of \$15,344.86 in prejudgment interest on the \$394,427.61 award at 10 percent per annum for the 142 days between issuance of the award and entry of judgment. Unfortunately, there is a significant question here as to whether the court currently has jurisdiction to award this prejudgment interest. Petitioners' original and amended petition to confirm the arbitration award checked the box to seek interest from the date of the arbitration award.
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		Neither Petitioners’ petitions nor any brief Petitioner filed, however, cited any of the foregoing authorities regarding prejudgment interest on arbitration awards, provided any interest calculations, or requested any specific amount of prejudgment interest. Similarly, the proposed judgment Petitioner later submitted left a blank for prejudgment interest, but again provided no calculations or specific request. As such, in entering the award, the court stated it had not been provided with any authority, evidence, or calculations and therefore an award of prejudgment interest, in any, would need to be made by a later motion. The court entered the award on March 27, 2026. Petitioners then filed and served this motion on April 10, 2026. On May 26, 2026, Respondent filed its notice of appeal from the judgment. “It is well established that prejudgment interest is not a cost, but an element of damages.” (<i>North Oakland Med. Clinic v. Rogers</i> (1998) 65 Cal.App.4th 824, 830.) Based on that characterization the North Oakland court concluded a “cost bill is not an appropriate vehicle for requesting interest under section 3287. In our view, prejudgment interest should be awarded in the judgment on the basis of a specific request therefor made before entry of judgment.” (<i>Ibid.</i>) The court went on to explain, “It further appears that, at the latest, a request for prejudgment interest under section 3287 may be sought as part of a motion for new trial pursuant to Code of Civil Procedure section 657, on the grounds of ‘[e]xcessive or inadequate damages.’ [Citation.]” (<i>Ibid.</i>) Accordingly, Petitioner should have sought this award of interest before entry of judgment, but that is not fatal to their request. Although not a motion for new trial, the court finds the current post-trial motion generally could be an acceptable way to request this prejudgment interest. The fatal problem is that Respondent has filed a notice of appeal. Because prejudgment interest is an element of damages, the court’s action awarding that interest requires an amendment of the judgment, and such an award and amendment is not in the nature of a costs or attorney fee award, which are considered collateral to the judgment and allowed despite an appeal from the underlying judgment. The filing and perfecting of an appeal divest the trial court of power or jurisdiction to act on matters “embraced in” or “affected by” the appealed judgment. Jurisdiction over the appealed matters shifts to the court of appeal and is terminated in the trial court; and the trial court's power to
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		enforce, vacate, or modify the appealed judgment or order is suspended while the appeal is pending. (See <i>Blizzard Energy, Inc. v. Schaefers</i> (2021) 71 Cal.App.5th 832, 842, fn. 4; <i>Varian Med. Systems, Inc. v. Delfino</i> (2005) 35 Cal.4th 180, 196-198.) Further trial court proceedings in contravention of the stay are in excess of the court's jurisdiction in its "fundamental sense" and thus void. (<i>Varian Med. Systems, Inc. v. Delfino</i> (2005) 35 Cal.4th 180, 198-199.) Based on the lack of jurisdiction, the court DENIES the motion. This ruling is based on the assumption Respondent has otherwise perfected the appeal. For example, Respondent has not only filed the notice of appeal, but also posted any bond that is required. The court will hear from the parties on this issue at the hearing. Respondent's counsel is ordered to give notice of this ruling.
12.	Alamour vs. Regents of the University of California 2025-01492598	Before the court is the joint motion of defendants County of Orange, Regents of the University of California, City of Huntington Beach, and City of Santa Ana (collectively, Defendants) to designate case as complex. Although plaintiffs opposed Defendants' ex parte application to advance the hearing on this motion, plaintiffs have not filed any opposition to this motion. The designation of a case as complex is governed by California Rules of Court, rule 3.400, et seq. Rule 3.400(a) provides, a "'complex case' is an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel." Rule 3.400(b) establishes a nonexclusive list of factors the court must consider in determining whether a case is complex. The factors include "whether the action is likely to involve: [¶] (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve; [¶] (2) Management of a large number of witnesses or a substantial amount of documentary evidence; [¶] (3) Management of a large number of separately represented parties; [¶] (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or [¶] (5) Substantial postjudgment judicial supervision."